

## 1. INTRODUCTION

Initially in any criminal proceedings the accused is presumed innocent and the burden of proof is on the prosecution to prove its case. The prosecution must prove that beyond reasonable doubt that the accused committed the offence. The principle behind this is that it is better that 10 guilty men should escape than that one innocent man should suffer. An illustration of this principle is the case of R v Adamu Adamu. The deceased had gone out, armed to hunt the accused who he suspected of theft. There was no doubt that the accused who was a thief, had killed him, but it was not clear from the evidence whether the killing was in self-defense, therefore the accused's conviction was quashed by the court of appeal.

Having said this what is a burden of proof? A burden of proof could mean the burden of establishing a case, or it may mean the burden of introducing evidence. In the first instance it usually rests on the prosecution to prove the guilt



of the caused beyond reasonable doubt. However, the burden of proof in the second sense, rests on the prosecution in the first instance and subsequently shift to the defence.

## **2. GENERAL DEFENCE**

### **2.1 ACCIDENT:**

By virtue of section 24 of the criminal code a person is not criminally responsible for an event which occurs by accident. The defence of accident under section 24 CC applies even if the act is unlawful particularly as the act by which it is caused is not done with the intention of causing it. Having said this what are the ingredients of the defence of accident? For the defence of accident to avail an accused person must establish that?

1. The act was done by accident
2. There was no criminal intention or knowledge

3. The act was done in the course of doing a lawful act, in a lawful manner by a lawful means and with proper care and caution.

This principle is also confirmed in the case of *Amayo v the State*, in this case a police man at a road block ordered a pick-up van to stop. The driver tried to move on, but another policeman (accused) emerged, just then, there was a gunshot. A bullet from the gun fired fatally and hit the conductor. The policeman was charged with murder. His defence was that his rifle fell from him, hit the ground, and exploded just on the pick-up van which as passing by. He said he had no intention to fire, let alone kill. <sup>It's</sup> ~~His~~ defence was one of accident. But the High Court and the Court of Appeal rejected his defence, convicted him <sup>for</sup> ~~of~~ murder and sentenced him to death. The accused further appealed to the Supreme Court. The issue before the Supreme Court was whether the appellant was exculpated from criminal responsibility for the death of the deceased by virtue of the provisions of section 24 of the criminal code. The Supreme Court held that no act is



punishable if it is done involuntarily. An involuntary act in this context means an act which is done by the muscles without any control by the mind, or done by a person who is not conscious of what he is doing. The Supreme Court unanimously allowed the appeal and substituted a conviction of manslaughter for murder.

Similarly in *Iromantu v State*, the deceased gripped the appellant's gun. In an attempt to recover it from him, the appellant accidentally touched the trigger and the gun went off and killed the deceased. It was held that s24 CC applied.

However, in *State v Appoh* two school boys A and B were pushing each other near a river. A third boy warned them that they were playing a dangerous game. Following a push by A, B slipped, fell into the river and was drowned. It was held that B's death was not an accidental event because a reasonable person would have appreciated the danger of pushing another near a river in the circumstance. The section 24 of the Criminal Code did not apply.



### 3.2 MISTAKE OF FACT

By virtue of s 25 of the criminal code, a person who does or omits to do an act under an honest and reasonable, but mistaken, belief in the existence of any state of things is not criminally responsible for the act or omission to any greater extent than if the real state of things had been such as he believed to exist.

In *Gadam v R*, the accused believed that the miscarriage and mortal illness of his wife was due to the witchcraft of an old woman, and he killed her with a hoe. It was a finding of fact, which was not disputed, that the accused belief was bona fide and that a belief in witchcraft was prevalent in the community in which he lived. A West African Court of Appeal dismissed the appeal against conviction for murder, holding the mistake to be unreasonable. The main philosophy here is that a mistake must be honest and reasonable. This double requirement must be met otherwise there would be no defence.



### **3.3 Ignorance of the Law**

By the provision of the criminal code, ignorance of the law does not afford any excuse for any act or omission which would otherwise constitute an offence, unless knowledge of the law by the offender is expressly declared to be an element of the offence.

### **3.4 Bona Fide Claim of Right**

By virtue of s 23 of the Criminal Code a person is not criminally responsible, for an offence relating to property, for an act done or omitted to be done by him with respect to any property in the exercise of an honest claim of right and without intention to defraud. This means that for a defence of bona fide claim of right to avail an accused person, he must establish that the claim of right is made with all honesty and without intention to defraud.

In *Dabierin & Anor v the State* the appellants were charged with stealing three baskets of cocoa. At the trial, the appellant claimed that the land and cocoa growing on it



belonged to the second appellant. At the close of the trial, the trial magistrate found them guilty as charged. He rejected the contention of the appellants that they had acted in the exercise of a bona fide claim of right and without intention to defraud in which case by virtue of section 21 of the Criminal Code of Western Nigeria (now section 23 of the Criminal Code) they would not be criminally responsible. The appellant being aggrieved appealed to the Supreme Court which held that it is "enough if the belief is honestly held and there can be no justification for reading into (section 23) of the Criminal Code any implied requirement that it should also be a belief which it was reasonable for the accused person to hold.

## **5 Extraordinary Emergencies**

A person is not criminally responsible if his act or omission was done under circumstances of sudden or extraordinary emergency. The defence is closely related to that of self defence. The emergency must be such that an ordinary person possessing ordinary power of self-control



could not reasonably be expected to act otherwise. An instance is where the driver of a car swerves suddenly to avoid someone who has carelessly ran into the roads, and unavoidably injures several pedestrians. In this situation, the law makes allowances for ordinary human feelings and reactions. It is presumed that the time is too short for the person to calculate the possible consequence of his taking an emergency course. It is enough if ordinary person in his situation could not reasonably be expected to have acted in a different way. However, a crucial issue is a situation where the driver was driving too fast and recklessly.

### **3.6 IMMATURITY**

For the purpose of criminal procedure, sentencing and criminal liability, there are various terms applied to different age groups. The procedures before the courts and the sentencing available on conviction will vary according to the age of the offender. The issue of criminal responsibility has to be considered before sentencing the offender. It is

irrebuttable presumption of the criminal law that a child under certain age at the time an alleged offence was committed cannot be found guilty of that offence. This is because such children are said to be doliincapax. Having said this at what age is a young offender not criminally liable for an offence committed?

By virtue of section 30 of the criminal code:

- a. A person under the age of seven years is not criminally responsible for any act or omission.
- b. A person under the age of twelve years is not criminally responsible for an act or omission, unless it is <sup>Proved</sup> provided that at the time of doing the act or making the omission he had capacity to know that he ought not to do the act or make the omission.
- c. A male person under the age of twelve years is presumed to be incapable of having carnal knowledge.

It should be noted that although a child under seven cannot be guilty of offence, he is still amenable to action by



the authorities. Part V of the children and young Persons Act Provides for the "Care and Protection" of any child. Crucially in section 26 any Local Authority, Local Government Council, Police Officer or authorized officer has power to bring any child or young person before a Juvenile Court if there is reasonable ground for believing that for any reason he/she needs care and protection. The reason for this is not to prove whether or not the child has committed an offence. However, if the Court is satisfied that the facts are as alledged, it may make some certain orders such as ordering the parents to guarantee to exercise proper care and guardianship; it may commit the child to the care of a "fit person", it may place the child on probation, or even make a corrective order and commit the child to an approved institution. These are more of welfare services for the interest of the children concerned.

For a child of seven or over and under 12 that is charged with an offence, there is a legal presumption that he is incapable of committing the offence which is rebuttable on proof that he had capacity to know that he ought not to do

what he did. However, there is one exception which is that there is an irrebuttable presumption that a boy under 12 is incapable of having carnal knowledge.

The test of capacity is subjective, that is, did the child himself appreciate that he was doing wrong? It is enough that he knows that his conduct is forbidden by law.

It is important to note that children who are less than the age of 17 are dealt with in Special Juvenile Courts. These are held in rooms different from the ordinary court room. The public are not generally admitted and the identity of the children is not made public.

### **3.7 Husbands and wives**

The general principle of law is that neither of the spouses can be criminally liable for doing any act in respect of each other's property. However, the rule applies only to offence against the property. For instance, a husband can be guilty of assaulting the wife.



By virtue of s 34 "a husband and wife of a Christian marriage are not criminally responsible for a conspiracy between themselves alone". In the same vein, section 36 states that "when a husband and wife of a Christian marriage are living together, neither of them incurs any criminal responsibility for doing or omitting to do any act with respect to the property of the other, except in the case of an act or omission of which an intention to injure or defraud some other person is an element, and except in the case of an act done by either of them when leaving or deserting, or when about to leave or desert the other.

Subject to the foregoing provisions a husband and wife are, each of them, criminally responsible for any act done by him or her with respect to the property of the other, which could be an offence, if they were not husband and wife, and to the same extent as if they were not husband and wife. But in the case of a Christian marriage neither of them can institute criminal proceedings against the other while they are living together.

From the foregoing provisions it is clear that there are  
r important exceptions to the defence:

The rule applies only to the husband or wife of a  
ristian Marriage.

The husband and wife must be living together at the  
e of the alleged offence.

There will be no defence when the act is committed by a  
ouse who is "leaving or deserting" or about to leave and  
sert the other.

The defence will not avail where the act is accompanied  
an intention to injure or defraud some third party.

## **TOXICATION**

e team intoxication has been defined as a diminished  
lity to act with full mental and physical capabilities as a  
ult of alcohol and drug consumption. The relevant  
visions on this plea are section 29 of the criminal code  
l sections 44 and 52 of the Penal Code. Section 29(1) of



the Criminal Code provides as follows: save as provided in this section, intoxication shall not constitute a defence to any criminal charge.

However, subsection (2) of this section provides thus:

“Intoxication shall be a defence to any criminal charge if by reason thereof the person charged at the time of the act or omission complained of did not know that such an act or omission was wrong or did not know what he was doing and-

- (a) The state of intoxication was caused without his consent by malicious or negligent act of another person; or
- (b) The person charged was by reason of intoxication insane, temporary or otherwise, at the time of such an act or omission.

On the other hand, by virtue of section 44 of the penal code a person who does an act in a state of intoxication is presumed to have the same knowledge as he would have had if he had not been intoxicated. However, the provision of section 52 of the same Penal Code states that:

Nothing is an offence which is done by a person who, at the time of doing it, is by reason of intoxication caused by something administered to him without his knowledge or against his will, incapable of knowing the nature of the act, or that he is doing what is either wrong, or contrary to law.

From the above statutory provisions, it is clear that the general rule is that intoxication is not a defence to criminal responsibility. However, there are exceptions which are covered in the two codes.

For the purpose of the Criminal Code provisions intoxication will be a defence if the accused can show that as at the time of the commission of the offence he did not know that what he did was wrong or that he did not know what he was doing. Nevertheless, for this exception to apply the accused must also establish that the state of intoxication was caused without his consent by the malicious or negligent act of another person or that he was by reason of the intoxication insane.



similarly, under the Penal Code, section 52 clearly provided that a person will not be liable of the offence if he/she can show that as at the time of doing the unlawful act he was under an intoxication caused by something administered to him without his knowledge or against his will to the extent that he was incapable of knowing the nature of his act or that what he did was either wrong or unlawful act. The implications of these statutory provisions are that for a plea of intoxication to be sustained, it must be established that the accused became intoxicated involuntarily, that is, through a malicious or negligent act of another. Meaning that it is not self-induced or voluntary intoxication.

### **Involuntary Intoxication**

This is the ingestion of alcohol or drugs against one's will or without one's knowledge. By virtue of section 29(2) (a) of the Criminal Code an accused will be able to rely on this defence if the person commits unlawful act in a state of intoxication which was caused without his consent by the malicious or negligent act of another person, and by reason of which he

did not know that such act or omission was wrong, or did not know what he was doing was wrong. The implication of this rule with respect to consent is that, presumably the defence is defeated only if the consent is given with full awareness of the true position.

Thus, it is clear that the accused may at least be able to rely on a defence of an act independent of the exercise of his will. See section 24 of the Criminal Code.

Another important implication of the wording of the provision is that the act of the other party must be malicious or negligent. Thus if the injection of the wrong intoxicating drug were accidental and not negligent, then the patient who subsequently committed an unlawful act in an intoxicated state could not rely on section 29(2) (a). The subsection does not also cover a man who mistakenly administers an intoxicant to himself.



## **Voluntary Intoxication**

Voluntary intoxication has been defined as a willing ingestion of alcohol or drugs to the point of impairment done with the knowledge that one's physical and mental capability would be impaired. The effect of section 29(2)(b) is to provide a defence of intoxication if by reason therefore.:

- (i) The person charged at the time of the act or omission complained of did not know that such act or omission was wrong or did not know what he was doing;
- (ii) The person charged was by reason of intoxication insane, temporarily or otherwise at the time of such act or omission.

Given that section 28 provides the meaning of "Insane" in section 29(2)(b), it would appear that the later section does not apply unless the intoxication is such as to have produced in the accused a state of mental disease or natural mental infirmity" (temporary or otherwise) as defined in section 28. This implies therefore that although intoxication is not a good

defence, becomes relevant when coupled with insanity. Meaning that insanity coupled with drunkenness is still insanity and that drunkenness under section 29 (2) (b) is a form of insanity. A clearer picture of the wording of this act is illustrated in some of the decided cases. In Attorney-General for Northern Ireland V Gallagher, in this case, a man indicated an intention to kill his wife. In furtherance of his intention to kill her bought a knife and a bottle of whiskey which he drank and got himself into a drunken state. He then proceeded to stab and kill his wife. On a charge of murder, he pleaded intoxication, claiming that he was so drunk at a particular time that he did not know what he was doing. This plea failed because the court found as a fact that he had already had an intention to kill before he got drunk. Secondly, his state of drunkenness was self-induced. It was obviously a case of self-induced intoxication. The clear position was illustrated in Lord Denning's statement held thus:

"If a man while sane and sober forms an intention to kill and makes preparations to do



it knowing it is the one thing to do, gets himself drunk so as to give him courage to do the killing and while drunk carries out his intention he cannot rely on a self-induced drunkenness as a defence to a charge of murder. The wickedness of his mind before he got drunk is enough to condemn him coupled with the act which he intended to do and he did do".

It is demonstrated in this case that self-induced intoxication is not a defence to murder or a charge of culpable homicide punishable with death.

Again, in the Nigerian case of *Osakwe v AG Bendel state*, it was held that by virtue of section 29(2) (a) & (c) of the Criminal Code intoxication can only be a defence if it has been induced by the malicious or negligent act of another.

The defence of intoxication could not avail the accused in this case because there was no evidence that his state of drunkenness was caused by the malicious act of another or that he was temporarily insane.

The legal consequence of section 29 of the Criminal Code is that, a plea of intoxication, when sustained, can result in two legal consequences. If the defence is sustained in cases under paragraph (a) of subsection 2 of this section that is, involuntary intoxication, the accused person will be discharged. But where the defence falls under paragraph (b) thereof, that is, where intoxication is coupled with insanity, then sections 229 and 230 of the CPA shall apply. Meaning that the accused person shall be acquitted. However, he/she may be kept in safe custody at the pleasure of the governor or the president.

It is important to note that section 140 (3) (c) of the evidence Act clearly places the burden of proving the defence of intoxication just like the defence of insanity, on the accused raising the plea.

### **INSANITY**

A successful plea of insanity provides a complete defence to a charge where the defendant was insane at the time the actus reus of the offence was committed. The main



justification for this is clearly injustice of punishing an actor who is not responsible for his actions.

The test for determining the degree of mental disorder requisite for relieving of criminal responsibility was first propounded in England in the famous M'Naghten Rules, formulated in 1843 by the Judges as advice given to the House of Lords after M'Naghten's case. These rules were

1. That everyone is presumed sane until the contrary is proved.
2. That it is a defence for the accused to show that he was laboring under such a defect of reason, due to disease of the mind as either.
  - a. Not to know the nature and quality of his act, or.
  - b. If he did know this, not to know that what he was doing wrong.
3. That if a man commits a criminal act under an insane delusion, he is under the same degree of responsibility as he



would have the same degree of responsibility as he would have been on the facts as he imagined them to be.

The issue of insanity may arise before the trial commences. If before the trial commences or during the course of the trial, the court has reason to suspect that an accused is of unsound mind, and consequently incapable of making his defence, then before proceeding any further the court must investigate the issue taking such medical evidence as required. If the court are not satisfied that the suspect is capable of making his defence, the trial shall then be postponed, and the accused remanded for a limited period of observation by a medical officer. The law officer or state counsel may also make an application for such remand.

When the medical officer certifies soundness of mind and capacity to make a defence the trial proceeds unless the court is satisfied to the contrary by the defence.

What then is the meaning of insanity for the purpose of criminal proceedings?